

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Annotation Guidelines: Legal Pre-conditions

Label: Pre and post-conditions, Actors, Legal Relations, Acts, Geographical / Physical Domains, Temporal Attributes, Explicit References, Hierarchies and Residual Attributes.

Purpose: The labels will be used to annotate legal provisions, predominantly from EU Legislation.

GENERAL GUIDELINES

- Legal provisions may entail a pre-condition and a post-condition. It may also occur that a provision only includes a postcondition. For the purposes of these guidelines, a pre-condition cannot be vaguely defined as a “condition” or a “legal requirement”; rather, it is a specific type of condition as per Figure 1.
- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.
- Legal provisions can contain “pre-conditional attributes” and “post-conditional attributes.” The focus of these guidelines lies with pre-conditional attributes. Pre-conditional attributes are characteristics of pre-conditions.
- The pre-conditional attributes are gathered under different sub-categories. Each attribute is covered below under separate labelling tasks (*tasks 1-9*).
- If annotators find multiple pre-conditions with different legal consequences that require a link to be made, they should clarify these relationships by linking the different parts of the provision. This is done by clicking the chain button on the Lawnotation platform:



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Figure 1 illustrates the different parts of a legal provision.

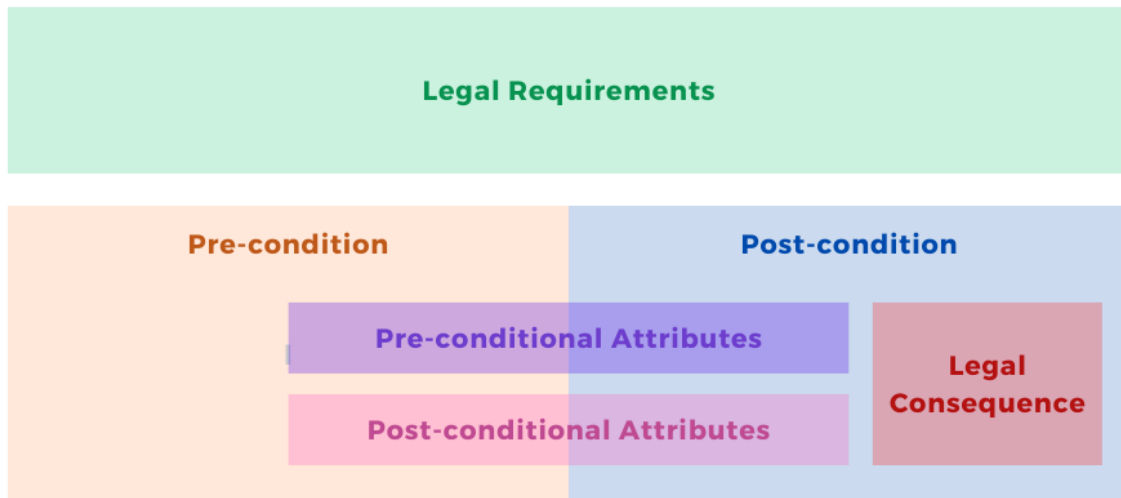


Figure 1: Legal Syllogism Schema

Notes:

- There can be multiple “pre-conditions” and “post-conditions” in a given legal provision.
- The “Legal Requirements” box illustrates that the ordinary cumulative or alternative legal requirements exist parallel to the pre-conditional and post-conditional attributes per these guidelines.

Example: If the **annotators** are in disagreement, negotiations shall take place.

In this example, a pre-conditional attribute (namely, an “actor”) appears in the pre-condition.

- Pre-condition: *If the annotators are in disagreement*
- Post-condition: *negotiations shall take place*
- Pre-conditional attribute in the pre-condition: *annotators*.

Pre-conditional attributes can also be observed in a text categorised as a post-condition.

Example: If there is a disagreement, then **annotators** enter into negotiations.

In this example, a pre-conditional attribute (namely, an “actor”) appears in the post-condition.

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- Pre-condition: *If there is a disagreement.*
 - Post-condition: *then annotators enter into negotiations*
 - Pre-conditional attribute in the post-condition: *annotators.*

Sometimes, a term used multiple times may be considered a pre-conditional attribute in one appearance and a post-conditional attribute in another appearance.

Example: *If the **annotators** are in disagreement, then the **annotators** enter into negotiations.*

- Pre-condition: *If the annotators disagree.*
- Post-condition: *then the annotators enter into negotiations.*
- Pre-conditional attribute found in pre-condition: *annotators.*
- Post-conditional attribute found in post-condition: *annotators.*

The tasks below aim to identify pre-conditions and post-conditions, and pre-conditional attributes within pre-conditions or post-conditions.

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LABELLING INSTRUCTIONS

The following labelling instructions are to be applied in **all tasks**.

Exceptions only apply to “task 1”, where all text (but full-stops) should be labelled. This is also explained under the task.

DO NOT:

- Annotate the task sequentially: Label all documents per task, i.e., finish annotating all documents for Task 1 (“pre and post-conditions”), then proceed with Task 2 (“actors”), etc.
- Include any punctuation (For example: , ? : ‘ “) in the annotations, **unless** it is necessary (e.g., to avoid breaking one annotation into multiple parts).
- Label “and” and “or” when these appear in the legal provision to avoid an unnecessary merging of two pre-conditional attributes.
- Consider the chronological element of the pre-conditional attributes. Seeking a chronological order to the appearance of the attributes of a legal provision might lead to a conclusion that “one must occur before the other.” Even if this might be true, it is not related to the consideration of pre-conditions per these guidelines. This is explored further under task 6: “Temporal” pre-conditions.

DO:

- Exclude articles (e.g., “the,” “a”) in the annotations.
- Label pre-conditional attributes in the form of *pronouns* every time they appear (i.e. for the second time or more). In such multiple appearances of pre-conditional attributes, a link between the appearances should be made on the lawnotation platform (see the last bullet point in the “general guidelines” above).
 - Examples of pronouns include: “it”, “they”/”them”, “he”/”she”, “him”/”her”, “who”/”whom”, and “that”.
 - This includes possessive pronouns, such as: “mine,” “yours,” “his,” “hers,” “its,” and “theirs.”

Example: A person is guilty of theft if he dishonestly appropriates ***property belonging to another*** with the intention of permanently depriving the other of ***it***.

Here, “*property belonging to another*” and “*it*” refer to the same pre-conditional attribute.

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ANNOTATION TASKS

- Iterate through the labels in the order presented below. This means you should start with Task 1, continue with Task 2, etc. It also means that in, for instance, the “Actors” task, only “Actors” will be labelled, even though other attributes exist in the text.
- Examples and non-examples are provided throughout. *Non-examples* illustrate scenarios that do not fall under the pre-condition discussed. For clarity, these are written in dark-red font.

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Task 1: Pre-conditions and Post-conditions

Label all legal pre-conditions and post-conditions.

Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.

Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

- To avoid confusion, you should attempt to understand the substance of the legal provision before annotating.
- A legal consequence can take the form of classification (e.g., if some requirements are met, something is classified (or defined) as something) or of behaviour (e.g., if some requirements are met, something needs to happen or should not happen). In both cases, the requirements are pre-conditional.
- It is possible to observe multiple pre-conditions and post-conditions within one provision.
- As can be seen in the examples below, unlike tasks 2-9, labelling includes all punctuation marks but not full stops. Therefore, full sentences can be annotated as one chunk, including connecting words (i.e. “and”, “or”) and punctuation marks such as commas or colons.

“Or” & “And”:

- If multiple pre or post-conditions are separated by an “or”, annotate the conditions as one text chunk (do not separate).
- Annotate multiple pre- or post-conditions as multiple text chunks if the following two requirements are met:
 1. The pre-/post-conditions are or can be, separated by an “and” (or are otherwise cumulative:

Example: *Without prejudice to future developments of case law, the provisions of this Agreement, in so far as they are identical in substance to corresponding rules of the Treaty establishing the European Economic Community and the Treaty establishing the European Coal and Steel Community and to acts adopted in application of these two Treaties, shall be interpreted...*

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In this example, “*without prejudice...*” and “*in so far...*” are cumulative pre-conditions that can be separated by an “*and*” (even though there is no “*and*” in the text).

2. The text chunks can be read and interpreted independently (i.e., they are not dependent on each other for readability).

Example: (...) *in so far as they are identical in substance to corresponding rules of the Treaty establishing the European Economic Community and the Treaty establishing the European Coal and Steel Community and to acts adopted in application of these two Treaties*, shall be interpreted...

Here, “*Treaty...*”, “*Treaty...*”, and “*acts adopted...*” depend on “*corresponding rules.*” Labelling the parts separately would mean that the second “*Treaty*” and “*acts adopted*” would lose their necessary connection to “*corresponding rules,*” hence the text is labelled as one chunk.

Examples

Pre-conditions are labelled **yellow**, and post-conditions are labelled **blue**.

Example: *Without prejudice to future developments of case law*, *the provisions of this Agreement*, *in so far as they are identical in substance to corresponding rules of the Treaty establishing the European Economic Community and the Treaty establishing the European Coal and Steel Community and to acts adopted in application of these two Treaties*, *shall, in their implementation and application, be interpreted in conformity with the relevant rulings of the Court of Justice of the European Communities given prior to the date of signature of this Agreement.*

Example: *The use of the technical system shall not be obligatory for users and shall only be permitted at their explicit request*, *unless otherwise provided under Union or national law*. *The users shall be permitted to submit evidence by means other than the technical system and directly to the requesting competent authority.*

As can be seen in the example above, exceptions should likely be considered prior to the legal consequence. With that reasoning, exceptions are labelled as pre-conditions.

Example: *Where the Commission finds that a difference between the provisions laid down by law, regulation or administrative action in the Member States is distorting the*

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conditions of competition in the internal market and that the resultant distortion needs to be eliminated, it shall consult the Member States concerned.

Example: *No provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.*

Example: *The European Council, acting by unanimity on a proposal by one-third of the Member States or by the European Commission and after obtaining the consent of the European Parliament, may determine the existence of a serious and persistent breach by a Member State of the values referred to in Article 2.*

Note that “European Council” is directly connected to “may determine the existence...” and therefore requires a relation. The subject takes part of the legal consequence, but because the parts are broken up by another text chunk (in this case: the pre-condition), it may seem as if “European Council” is annotated separately.

Example: *If, after the adoption of a harmonisation measure by the European Parliament and the Council, a Member State deems it necessary to maintain national provisions on grounds of major needs referred to in Article 36, or relating to the protection of the environment or the working environment, it shall notify the Commission of these provisions as well as the grounds for maintaining them.*

Example: *The data contained in the application file on the basis of which 3'-sialyllactose sodium salt has been assessed by the Authority, claimed by the applicant as fulfilling the requirements laid down in Article 26 (2) of Regulation (EU) 2015/2283, shall not be used for the benefit of any subsequent applicant for a period of five years from the date of entry into force of this Regulation without the agreement of the applicant.*

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Task 2: Actors

Label all pre-conditional attributes that take the shape of an actor, whether it appears as part of the pre-condition or post-condition.

An actor can be a natural person, legal entity, organisation, or body.

Pre-conditional actors can be recognised according to either of the following two criteria:

1. Legal Capacity Criterion: The actor's legal capacity enables the legal consequence.
2. Essential Non-Acting Actors Criterion: The actor in the provision is directly necessary for the legal consequence to come into effect (despite lacking the legal capacity to act).

Note that the mere mention of an actor or the fact that an actor needs to exist is **not** sufficient for them to become a pre-conditional attribute.

Distinguish actors from geographical settings. The latter will be explored under "Task 5" below. For example, when a "*Member State*" appears, does it appear in its legal capacity, or as the mere geographical setting?

If the relevant entity does not act (or does not act) in its legal capacity, it is not an actor.

Member States in their legal capacity (actor): *If the Commission considers that **Member State** has failed to fulfil an obligation under the Treaties, it shall deliver a reasoned opinion on the matter...*

Member States as geographical setting (non-actor): *Subject to this Regulation, persons domiciled in a Member State shall have the right to...*

Examples

Example: *If a natural disaster occurs within a Member State, the **competent national authorities** shall deploy emergency response teams to assist affected individuals.*

In this example, "*competent national authorities*" have the legal capacity to take action (i.e. deploy emergency response teams) and are therefore a pre-conditional actor. "*Affected individuals,*" however, is **not** a pre-conditional actor, as the affected individuals receive assistance but are not directly necessary for the legal consequence to come into effect.

While pre-conditional actors are those whose legal capacity enables the legal consequence to take effect, some provisions establish rights, permissions, or prohibitions where the protected

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or regulated actor is essential for the provision to function. These actors do not have a legal capacity to act but are necessary to enable the legal consequence. “Necessary” implies that beneficiaries or affected persons should **not** automatically be labeled as pre-conditional actors.

*Example: When detained by authorities, **asylum seekers** referred to in paragraphs 1 and 2 shall not be subjected to inhumane treatment, and **detainees** shall be promptly informed of their rights.”*

In this example, “*asylum seekers*” and “*detainees*” are annotated as essential non-acting actors because even though they do not act, the legal consequences (not be subjected / shall be promptly informed) are conditional on asylum seekers and detainees, respectively. In other words, they are directly necessary for the rights or prohibitions (“*not to be subjected,*” “*shall be promptly informed*”) to have legal effect.

*Example: The **controller** and the **processor** shall designate a **data protection officer** in any case where:*

*(a) the processing is carried out by a **public authority** or **body**, except for **courts acting in their judicial capacity**.*

Note that “*data protection officer*” is annotated because it is essential for “*where the processing is carried out*” but not essential for “*shall designate*” to come into effect.

*Example: If the **Commission** considers that a **Member State** has failed to fulfil an obligation under the Treaties, **it** shall deliver a reasoned opinion on the matter after giving the **State** concerned the opportunity to submit its observations.*

*Example: Any **Member State** may decide to withdraw from the **Union** in accordance with its own constitutional requirements.*

Multiple Labelling of the Same Actor: When an actor appears as a pre-conditional attribute multiple times within a legal provision, label that actor each time it appears. In the following example, the “*Member States*” are labelled twice as Actors.

*Example: Within the framework of the provisions set out in this Chapter, all restrictions on the movement of capital between **Member States** and between **Member States** and **third countries** shall be prohibited.*

Labelling of actors’ adjectives: When an adjective is adjacent to the actor, label it together with the actor.

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Example: Before any decision which would adversely affect the rights of the person concerned is taken, the person shall be given the opportunity to express their point of view within a reasonable time limit, except where immediate action is necessary.

Labelling of “Nested Actors:” Nested Actors refer to individuals or entities that exist within another larger entity, highlighting a contained or subordinate relationship. Their identity is defined in relation to their inclusion within this overarching entity.

Label nested actors in their entirety, avoiding separate labelling of their individual components.

Note: Nested actors are labelled in **bold** to distinguish them from other actors.

*Example: Overdraft facilities or any other type of credit facility with the European Central Bank or with the **central banks of the Member States** in favour of Union institutions, bodies, offices or agencies, central governments, regional, local or other public authorities, other bodies governed by public law, or **public undertakings of Member States** shall be prohibited, as shall the purchase directly from them by the European Central Bank or **national central banks of debt instruments**.*

In the example above “Central banks of the Member States”, “public undertakings of Member States” and “national central banks of debt instruments” are nested actors.

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Task 3: Legal Relations

Label all Legal Relations.

Legal relations refer to the legal elements linking two or more different actors, e.g. contractual relationships, where it becomes clear from the text and/or the terms who are part of the legal relation. A legal relation is a pre-conditional attribute that is a necessary condition for the legal consequence to be applicable.

Examples of legal relations include, but are not limited to:

- Employment (e.g., employer and employee),
- Corporate Transactions (e.g., between two legal entities),
- Family or Social Relationships (e.g., between two natural persons),
- Contractual Relations (e.g., parties to an agreement),
- Public Law Relations (e.g., interactions between public bodies or between public bodies and private individuals acting in their personal capacity).

Examples

*Example: An individual is defined as an employee if they are employed under a **contract of employment**.*

*Example: Except as otherwise provided by this Act, every employer carrying on any business in Great Britain shall insure, and maintain insurance, under one or more approved policies with an authorised insurer or insurers against liability for bodily injury or disease sustained by his employees, and arising out of and in the course of their **employment** in Great Britain in that business...*

In the previous example, “employment” **should** be labelled since it is a pre-conditional attribute (in the post-condition).

*Example: Where a processor engages another processor for carrying out specific processing activities on behalf of the controller, the same data protection obligations as set out in the **contract** or other **legal act between the controller and the processor** as referred to in paragraph 3 shall be imposed on that other processor by way of a contract or other legal act under Union or Member State law (...)*

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Non-example: The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay and the controller shall have the obligation to erase personal data without undue delay where one of the following grounds applies:

- (a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;*
- (b) the data subject withdraws consent on which the processing is based according to...*

In sub (b) of the previous non-example, “*consent*” should not be considered a legal relation because it only reflects one side of a legal agreement.

Example: Before the consumer is bound by a distance or off-premises contract or any corresponding offer, the trader shall provide the consumer with the following information in a clear and comprehensible manner (...)

Non-example: The European Parliament and the Council, acting by means of regulations in accordance with the ordinary legislative procedure, shall establish these principles and set these conditions without prejudice to the competence of Member States, in compliance with the Treaties, to provide, to commission and to fund such services.

In the example above, the statement “*without prejudice to the competence of Member States*” does not serve as a legal relation as per the definition above. Such a statement shall be considered under task 8 – “Hierarchies.”

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Task 4: Acts

Label all pre-conditional acts within legal provisions.

A pre-conditional act is an action that must or may occur (positive act) or must not occur (negative act) before the legal consequences of a provision can take effect.

Acts do not need to be physical. They do require the involvement of an evaluation or decision (e.g., an authority setting the grounds for rejection). Merely describing a state or situation without requiring a decision or action is **not** an act (e.g., “*grounds for rejection continue to apply*”).

Note that acts often rely on another pre-conditional attribute, namely “actors,” when someone is required to carry out the act (or not) in case of a negative act.

When labelling a pre-conditional act, the inclusion of actors within that annotation should be avoided **unless** the wording of the provision necessitates it. The latter is common, as demonstrated in the first example below, where “*another*” and “*other*” are pre-conditional actors.

Label the entire act.

Label acts separately if multiple acts are present, provided this does not alter their meaning. If separating the labels affects the act's essential meaning, label them as one. When in doubt, assess whether labelling the acts separately diminishes their core meaning compared to labelling them together.

Examples

Example: A person is guilty of theft if he dishonestly appropriates property belonging to another with the intention of permanently depriving the other of it.

The following is an example of multiple acts within separate pre-conditions within the same article.

Example: The Council, acting in accordance with a special legislative procedure, shall adopt a regulation laying down the multiannual financial framework. The Council shall act unanimously after obtaining the consent of the European Parliament, which shall be given by a majority of its component members.

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In the example above, note that “*which shall be...*” is included, as it further specifies the act and is therefore part of the act.

Example: Where the verification assessment concludes, with reasonable assurance from the verifier, that the emissions report is free from material misstatements, the verifier shall issue a verification report stating that the emissions report has been verified as satisfactory.

Example: When applying, the applicant shall submit all relevant documents. The documents shall be submitted in electronic format.

Pre-conditional acts include both positive acts (actions taken) and negative acts. For this task, negative acts prescribe the requirement of refraining from acting (inaction) or failure to act before the legal consequences of a provision can take effect.

Both inaction and failure to act should be labelled as acts.

The following is an example of a failure to act.

Example: If the requirements of section 441 (duty to file accounts and reports) are not complied with in relation to a company’s accounts and reports for a financial year before the end of the period for filing those accounts and reports, every person who immediately before the end of that period was a director of the company commits an offence.

Example: Any person required under this title to pay a tax, make a return, keep any records, or supply any information, who willfully fails to pay such tax, make such return, keep such records, or supply such information, at the time or times shall, in addition to other penalties provided by law, be guilty of a misdemeanour. Here, “fails” can be read as an indicator of inaction.

Other pre-conditional attributes can appear within the pre-conditional act.

Example: If a Member State considers it necessary to maintain national provisions on grounds of major needs referred to in Article 36, or relating to the protection of the environment or the working environment, it shall notify the Commission of these provisions as well as the grounds for maintaining them.

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In this example, “*Member States*” is an actor (Task 2), “*major needs referred to in Article 36*” is an explicit reference (Task 7), and “*major needs*,” “*protection of the environment*” and “*working environment*” are residual pre-conditional attributes (Task 9).

Interpretation of the provision determines whether something is an act.

Example: *The data contained in the application file on the basis of which salt has been assessed by the Authority, shall not be used for...*

The question here is whether “*has been assessed*” is an act that needs to be carried out. If the answer is yes, this should be labelled as an act. In the alternative, one would interpret the provision as that “*salt has been assessed*” is presumed to have taken place (similar to when one would read “*certification received by the authority*”, where *certifying* is assumed to have taken place and thus cannot be considered a pre-conditional act). In case it is pre-conditional per these guidelines, it is a residual pre-condition and not an act.

Non-Example: *Subject to this Regulation, persons domiciled in a Member State shall, whatever their nationality, be sued in the courts of that Member State.*

This example is not an act, as it does not prescribe any positive or negative action to be taken, but a factual status (“*domiciled in a Member State*”). This example would fall as a pre-conditional attribute of “geographical/physical domains” under Task 5.

Non-example: *Unless otherwise specified in the call for proposals, proposals shall not be evaluated anonymously.*

Note that we do not label “unless otherwise specified in the call” as an act, as there is no action or inaction required.

Non-example: *A proposal for an indirect action which contravenes fundamental ethical principles or which does not fulfil the conditions set out in the work programme, or in the call for proposals shall not be selected.*

Note that we do not label “*proposal for ...*” as an act, as there is no action or inaction, only a thing (a proposal), that is required for the legal consequence to take effect.

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Task 5: Geographical/Physical Domain

Label all Geographical / Physical Domains.

Geographical / Physical Domains refer to an identified establishment or specific geographical and physical domain where the pre-conditional attributes of a given legal provision must occur.

Key indicators of the geographical/physical domains will determine the geographical scope of a regulation or provision by prescribing where the actors shall be situated for the post-conditions to apply.

Examples

*Example: Subject to this Regulation, persons domiciled in a **Member State** shall, whatever their nationality, be sued in the courts of that Member State.* Note that we label ‘domiciled in a...’ being the trigger words for the geographical/physical domain.

*Example: A manufacturer with a **registered place of business outside the Union** shall, in order to allow its authorised representative to fulfil the tasks mentioned in Article 11(3), ensure that the authorised representative has the necessary documentation permanently available*

Geographical / Physical Domain attributes should not be confused with other pre-conditional attributes, such as actors.

Non-Example: Where a third country adopts measures for reducing the climate change impact of flights departing from that third country which land in the Union, the Commission, after consulting with that third country, and with the Member States within the Committee referred to in Article 22 (a)(1), shall consider options available in order to provide for optimal interaction between the EU ETS and that country's measures.

Given the context of the legal provision, the first mention of a “third country” is an actor, while the following mention of a “third country” is a geographical/physical domain as per the definition above. That is because the first mention is an entity capable of taking legal measures, while the following mention is a geographical place where flights depart from.

*Example: This Regulation shall apply to passengers departing from an **airport located in the territory of a Member State**.* If a provision provides a geographical setting, such

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as a “*Member State*” and a more specific location within this setting, label both under a single annotation.

When in doubt as to whether a setting constitutes an actor or a geographical/physical domain, determine whether there is a specific geographical location allocated to the actors’ competencies or activities. For instance, “*courts of municipality x*” is an actor as per Task 2, whilst “*case heard within courts of municipality x*” is a geographical/physical domain.

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Task 6: Temporal

Label all temporal pre-conditions.

Temporal attributes denote a specified or general (circumstantial) period that should be considered before the legal consequences are triggered.

Consider the following examples:

1. *Before it is my birthday, you shall be informed.*
2. *Before being assigned to a task involving the risk of exposure to the hazardous chemical agent indicated, workers shall be informed of this requirement.*

In both examples, “*before*” signals a period, which satisfies the temporal requirement.

To determine whether the “*before*” is also a pre-conditional attribute, the relevant question is: what temporal requirement must be fulfilled (i.e. is a necessary condition) for the legal consequence to take effect? In the examples, the timeframe of or the requirement for “*birthday*” and “*being assigned a task*” must have occurred for the post-condition (“*shall be informed...*”) to take effect.

In other words, we consider “*shall be informed*” to be conditional on the “*before,*” and therefore, it is a pre-conditional attribute.

The task is **not** to determine what temporally or chronologically precedes the legal consequence. “*Informing*” precedes “*birthday*” and “*being assigned.*”

The chronological order should **not** be decisive when annotating. For instance, in the second example, there are two action verbs: Workers are first informed and then assigned (in the first example: first informed, then the birthday). Here, the temporal elements (indicated by “*before*”) chronologically follow the act in the postconditions (“*informed*”), yet the temporal elements are necessary conditions for the legal consequence to take effect.

Also, the task is **not** to determine whether the legal consequence can exist independently of the temporal aspect. One could reason that the obligation to inform in the first example exists independently of the birthday (the birthday is simply a reference point in time) and that ‘birthday’ therefore does not function as a pre-condition that must be met for the obligation to arise. This is different in the second example, where workers must be informed as a condition before being assigned to a hazardous task.

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Instead of focusing on the chronological order or whether the legal consequence can exist independently of the temporal element, the focus in this task should be on whether what is introduced by “*before*” serves as a (pre)condition that must be satisfied for the legal consequence to take effect.

Put differently, it needs to be determined whether the “*before*” is a necessary requirement that triggers the legal consequence of “*shall inform...*”. In the two examples, the texts that follow “*before*” are indeed such necessary requirements: Before the birthday and before being assigned are requirements that trigger the legal consequence.

Note that the order of the sentence does not change the annotations:

“Workers shall be informed of this requirement before being assigned to a task involving the risk of exposure to the hazardous chemical agent indicated.”

“You shall be informed before it’s my birthday.”

Examples

Example: *By 15 September each year, Member States shall...* Here, “*by*” is labelled as part of the temporal attribute, since it makes clear that the time frame is any time prior to “*15 September each year.*”

Temporal attributes may also refer to a preceding set period prior to the legal consequences taking effect.

Example: *The regulation shall apply from 25 May 2018.*

Example: *After eighteen months of legal residence in the first Member State as an EU Blue Card holder, the person concerned and his family members may move to a Member State other than the first Member State for the purpose of highly qualified employment under the conditions set out in this Article.*

Example: (...) *by limiting the rights conferred on third-country workers under point (e) of paragraph 1, but shall not restrict such rights for third-country workers who are in employment or who have been employed for a minimum period of six months and who are registered as unemployed.*

Example: *infant means a child under the age of 12 months.*

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Temporal pre-conditions can also appear in the form of time-based requirements that set a specific time frame within which the post-conditions must apply.

Example: *Without prejudice to Articles 14 and 15, a person discharging managerial responsibilities within an issuer shall not conduct any transactions on its own account or for the account of a third party, directly or indirectly, relating to the shares or debt instruments of the issuer or to derivatives or other financial instruments linked to them during a closed period of 30 calendar days before the announcement of an interim financial report or a year-end report which the issuer is obliged to make public according to (...)*

Example: *Young child' means a child aged between one and three years.*

Example: *The data, claimed by the applicant as fulfilling the requirements laid down in Article 26 (2) of Regulation (EU) 2015/2283, shall not be used for the benefit of any subsequent applicant for a period of five years from the date of entry into force of this Regulation without the agreement of the applicant.*

A provision may also prescribe a specific chronological sequence of the requirements by providing a specified act or omission to occur prior to the legal consequences:

Example: *Before the conclusion of a treaty affecting the special circumstances of a Land, that Land shall be consulted in a timely fashion.*

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Task 7: Explicit References

Label all Explicit References.

An explicit reference refers to a concept identified and defined within the same or another legal document.

Explicit References direct to **an** identifiable document such as a Regulation, Directive, Case Law, or other legal standard, such as an Article, Sub-Article, or a certain part of an Annexe.

This includes references to a part within the same document or the same document as a whole.

Key indicators for “explicit references” include “*referred to,*” “*provided for,*” “*set out,*” *etc.*

Explicit references should only be labelled if they are considered pre-conditional attributes, or part of the pre-condition (in the broad sense), or both.

Examples:

Include annotations for both the references and the legal concepts they are connected to.

Example: For the purposes of this Regulation, **entities referred to in paragraph 1, point (a) to (t)** shall collectively be referred to as ‘financial entities.’

Example: group means a **group as defined in point (11), of Directive 2013/34/EU.**

Example: **Food referred to in Article 1 (1)** shall only be allowed on the retail market in the form of prepacked food.

Example: The **impact assessment referred to in point (c) of paragraph 2** shall be carried out in accordance with the International Guidelines for the Management of Deep-sea Fisheries in the High Seas of the Food and Agriculture Organisation published in 2009 (*‘Deep-sea Fisheries Guidelines of the FAO’*)...

Example: In order to ensure a high level of health protection in relation to the persons for whom the **food referred to in Article 1(1) of this Regulation** is intended, the precautionary principle as set out in Article 7 of Regulation (EC) No 178/2002 shall apply.

Note that, in contrast to the previous examples, where the reference overlaps with the pre-condition, the tagged reference is part of the pre-condition “*In order to ... is intended*” and nested within the act “*to ensure ... is intended*”).

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Example: The **FFPA provided for in Article 28(4)** or the **contribution agreements referred to in Article 32(1)** shall contain relevant provisions to allow the use of the intellectual property rights necessary for the implementation of the action or project, in accordance with the **applicable rules and regulations on intellectual property established under the framework programme or agreement**.

Example: ... the competent authority shall provide the Agency as soon as possible with any safety-significant information stemming from the **occurrence reports stored in the national database pursuant to Article 6(6) of Regulation (EU) No 376/2014**.

The reference is a pre-conditional attribute in the post-condition and nested in the residual “safety-significant information ...”.

Non-example: In order to maximise the impact of the **measures set out in this Decision**, the Union shall encourage third States to adopt restrictive measures similar to those provided for in this Decision.

In this example, the first reference is nested within an act (“maximise...”). The second reference (“this Decision”) is part of the post-condition and also not part of a pre-conditional attribute in the post-condition. Note that “measures set out in this Decision” is an Explicit Reference, as it is part of the pre-condition (“In order to...”).

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Task 8: Hierarchies

Label all Hierarchies.

Hierarchies are the prioritisation of legal rules or other norms within a legal framework. They refer to another legal rule or norm of a superior or inferior nature.

Legal hierarchies are pre-conditions because they establish the priority of other legal rules, or legal norms, that must exist before the legal consequences of a legal provision can take place. Hierarchies can exist between and within legal provisions.

Include the indicators of hierarchies. These indicators may take forms such as “Without prejudice to,” “Notwithstanding,” and “Subject to.”

Examples

Legal Rule Hierarchies

Identify and include the relevant document, such as a Regulation, Directive, or Case Law, and specify the part within this document, such as an Article, Sub-Article, or a certain part of the Annexe.

Label the entire hierarchy as one text chunk, starting from the hierarchy indicator and ending with the preferred norm.

Example: *Without prejudice to Article 4 of the Treaty on European Union or to Articles 93, 106 and 107 of this Treaty, and given the place occupied by services of general economic interest in the shared values of the Union as well as their role in promoting social and territorial cohesion, the Union and the Member States, each within their respective powers and within the scope of application of the Treaties, shall take care that such services operate on the basis of principles and conditions, particularly economic and financial conditions, which enable them to fulfil their missions.*

Example: *Notwithstanding the expiry of the period laid down in Article 263, sixth paragraph, any party may, in proceedings in which an act of general application adopted by an institution, body, office or agency of the Union is at issue, plead the grounds specified in Article 263, second paragraph, in order to invoke before the Court of Justice of the European Union the inapplicability of that act.*

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Example: *Subject to Articles 70 and 71, this Regulation shall, as between the Member States, supersede the conventions that cover the same matters as those to which this Regulation applies.*

Example: *Without prejudice to paragraph 13 of this Article, in the digital sector, resources allocated to Member States under shared management may, at the request of those Member States, be transferred to the CEF...*

Hierarchies of Other Norms

Legal norms may include, for example, principles of law, rights, general standards within a legal framework, public considerations, and more.

Example: *Any limitation on the exercise of the rights and freedoms recognised by this Charter must be provided for by law and respect the essence of those rights and freedoms. Subject to the principle of proportionality, limitations may be made only if they are necessary and genuinely meet objectives of general interest recognised by the Union or the need to protect the rights and freedoms of others.*

Example: *Without prejudice to the principle that the polluter should pay, if a measure based on the provisions of paragraph 1 involves costs deemed disproportionate for the public authorities of a Member State, such measure shall lay down appropriate provisions in the form of...*

Sometimes, an indicator is not to be found explicitly in the provision.

- Example: *A treaty is void if, at the time of its conclusion, it conflicts with a peremptory norm of general international law. For the purposes of the present Convention, a peremptory norm of general international law is a norm accepted and recognised by the international community of States as a whole as a norm from which no derogation is permitted and which can be modified only by a subsequent norm of general international law having the same character.*

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Task 9: Residual Pre-conditions

Label all Residual Pre-conditions.

Residual pre-conditions are pre-conditional attributes that do **not** fall under the pre-conditional attributes in tasks 1-8 but are nonetheless conditional for the legal consequences coming into effect.

Do not label residual pre-conditions before labelling all pre-conditional attributes of tasks 1-8.

Residual pre-conditions should not be labelled within any labelling of the other attributes (tasks 1-8).

Examples

*Example: If any **failure** of a Member State, Eurojust, Europol, or the EPPO to comply with its obligations under this Regulation causes damage to ECRIS-TCN, that Member State, Eurojust, Europol, or the EPPO, respectively shall be held liable for such damage, unless and insofar as eu-LISA or another Member State participating in ECRIS-TCN failed to take reasonable measures to prevent the damage from occurring or to minimise its impact.*

*Example: The **costs of measures to facilitate or support inclusion** shall not justify the rejection of an application under the Programme.*

Note that “costs of measures to facilitate or support inclusion” is not an act because the verb only serves as a description of those costs.

*Example: An unlawful act is defined as a violation of a right and an act or omission in violation of a statutory duty or in violation of what is customary in society according to an unwritten law, all this subject to the presence of a **justification**.*

Note that we label “violation ...” and “act or omission” as an act because it is or requires an act (“to violate,” “to act,” “to omit”) that is required for the legal consequence (i.e., to define something as an unlawful act) to take effect.

*Example: An unlawful act may be imputed to the perpetrator if it is due to his **fault**, or to a **cause for which he is responsible by virtue of the law** or **generally adopted practices**.*

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Example: In applying paragraph 1(d), the following criteria shall also be taken into account:

Example: The Commission shall evaluate the proposals with the assistance of independent experts appointed in accordance with Article 11. For some specific support actions, particularly those covered by Article 9(2), independent experts shall be appointed only if the Commission deems it appropriate. The Commission shall publish the list of the experts selected.

Example: All proposals submitted for indirect actions shall be treated confidentially by the Commission, which shall ensure that the principle of confidentiality is upheld in all procedures and that the independent experts are bound by this.

Example: Unless otherwise specified in the call for proposals, proposals shall not be evaluated anonymously.

Example: A proposal for an indirect action which contravenes fundamental ethical principles or which does not fulfil the conditions set out in the work programme, or in the call for proposals shall not be selected. Note that we do not annotate the parts separately, as doing so (eg, ‘in the call for proposals’) would cause the annotated text chunk to lose essential meaning.

Example: When caught accidentally, species referred to in paragraphs 1 and 2 shall not be harmed and specimens shall be promptly released back into the sea.

In this example, “species” are annotated as a residual because although they do not act, they are necessary conditions for the right (to not be harmed) / prohibition (to harm) to have meaning.

Example: Where a Member State has scientifically justifiable grounds for believing it is essential to use non-human primates for the purposes referred to in Article 8(1)(a)(i) with regard to human beings, but where the use is not undertaken with a view to the avoidance, prevention, diagnosis or treatment of debilitating or potentially life-threatening clinical conditions, it may adopt a provisional measure allowing such use...

For the purposes of these guidelines, and per the consistent reference to animals as non-beings/property, animals (if pre-conditional) are considered “residual” and not as “actors” under Task 2.

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Steps:

[pre-condition]	[pre conditional attribute]	[pre-conditional attribute in pre-conditional attribute]
Where a Member State has scientifically justifiable grounds for believing it is essential to use non-human primates for the purposes referred to in Article 8(1)(a)(i) with regard to human beings, but where the use is not undertaken with a view to the avoidance, prevention, diagnosis or treatment of debilitating or potentially life-threatening clinical conditions.	Member State has scientifically justifiable grounds for believing it is essential to use non-human primates purposes referred to in Article 8(1)(a)(i) human beings not undertaken with a view to the avoidance, prevention, diagnosis or treatment of debilitating or potentially life-threatening clinical conditions	scientifically justifiable grounds non-human primates

- Pre-condition Definition: A factual or legal requirement that must be met before a legal provision can be applied or any legal consequences can take effect.
- Post-condition Definition: A legal consequence resulting from the relevant pre-conditions being met.

Example: the controller shall, prior to the processing, carry out an assessment of the impact of the envisaged processing operations on the protection of personal data. A single assessment may address a set of similar processing operations that present similar high risks.

Steps:

[post-condition 1]	[pre-conditional attribute in post-condition]
the controller shall, prior to the processing, carry out an assessment of the impact of the envisaged processing operations on the protection of personal data.	controller prior to the processing
[post-condition 2]	[pre-conditional attribute in post-condition]
A single assessment may address a set of similar processing operations that present similar high-risks	single assessment

Reasoning: The second IF-THEN statement explains that if the assessment of the impact of the envisaged processing operations on the protection of personal data is carried out, then it may address a set of similar processing operations that present similar high risks. This ultimately means that the single assessment is a necessary prerequisite prior to addressing a set of similar processing operations. “Single assessment” also does not fall under any pre-conditional attribute, rendering it a residual pre-condition.